

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200570573CUBC: Terry Burciaga vs. American Honda Motor
06/25/2026 in Department 44
Motion for Attorney Fees/Costs

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion for Attorneys’ Fees, Costs, and Expenses (*opposed*)

Tentative Ruling:

Plaintiffs’ Motion for Attorneys’ Fees, Costs, and Expenses is GRANTED. The Court will award attorney fees in the amount of \$98,333.50 and costs in the amount of \$30,326.46, for a total award of \$128,659.96.

Plaintiffs’ objections to the Hernandez declaration are overruled.

I. Legal Standard: Attorney Fees and Costs in Song-Beverly Actions

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Code Civ. Proc., § 1794, subd. (d).)

“A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were ‘reasonable in amount.’” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104 [quoting *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816 (internal quotation marks omitted)].)

“The reasonable hourly rate is that prevailing in the community for similar work.” (*Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 406 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].)

“Courts apply the lodestar method in calculating attorney fees.” (*Pulliam, supra*, 60 Cal.App.5th at p. 406.) The court may award fees in a lesser amount if, after considering all the circumstances, it finds that the time expended or monetary charge being made for time expended is not reasonable. (*Nightingale, supra*, 31 Cal.App.4th at p. 104.)

“Costs and expenses” outside of those allowable under Code of Civil Procedure section 1033.5 may be allowed under Civil Code section 1794, subdivision (d), so long as they were reasonably necessary to the conduct of the litigation and were reasonable in amount. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43; see also *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, disapproved on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 204-205; *Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 506-507.)

II. Application

A. Attorney Fees

Plaintiffs seek a lodestar of \$143,195 before application of the requested 1.5 multiplier. The billing records reflect that 17 attorneys and two paralegals worked on the matter for a total of 296.3 hours. The attorneys’ hourly rates range from \$295 to \$625, and the paralegals billed at \$145 per hour. Exhibit A contains a timekeeper summary identifying each biller’s rate, hours, and resulting fees. (Kirnos Decl., ¶¶ 2, 27–28 and Exh. A.) The litigation was actively contested over nearly three years. Defendant moved to compel arbitration, which was initially granted, but Plaintiffs later obtained reconsideration based on intervening law. The parties also litigated multiple discovery disputes, including motions to compel further document responses, compliance with a discovery order, and Defendant’s person-most-knowledgeable deposition, and Defendant filed additional motions and ex parte applications seeking section 473 relief, expert discovery, and the late designation of experts. The parties conducted the deposition of Defendant’s person most knowledgeable, two deposition sessions for each Plaintiff, three expert depositions, and a vehicle inspection. Plaintiffs also prepared motions in limine, trial documents, examination outlines, and an opening statement, and attended pretrial conferences and trial call before the matter settled for \$46,000 on August 19, 2025. It is generally asserted that lemon law cases are not simple and require specialized knowledge; that substantial time was saved by “not needing to draft each document from scratch” due to the use of templates; that the firm uses an “assembly line” case handling style; and that the firm uses case management software. (*Id.*, ¶¶ 12-13, 18-22, and Exh. A.) Time is not recorded contemporaneously with the performance of the work but rather is recorded on a weekly basis. (*Id.* ¶ 22.)

Although Plaintiffs' counsel provides a timekeeper-by-timekeeper lodestar chart, he does not provide a summary of the work that shows the phases of the litigation or work grouped by category, such as such as pre-filing investigation, pleadings, written discovery, depositions, expert discovery, law and motion, mediation and settlement efforts, trial preparation, trial, post-trial proceedings, and fee motion litigation. (Kirnos Decl., ¶¶ 18–22 and Exh. A.) These omissions do not preclude a fee award, but they are relevant to the Court's assessment of whether all hours claimed were reasonably and efficiently incurred.

The Court has independently reviewed all billing records submitted in support of the fee request. In light of the nearly 40 pages of billing entries generated by 17 attorneys and 2 paralegals over the course of more than three years of litigation, the Court declines to engage in an exhaustive entry-by-entry analysis and discussion. Such a review is neither required nor practical. Instead, the Court notes that, despite the "N/C" notation next to numerous entries, Plaintiffs continue to seek compensation based on excessive time expenditures, excessive intra-office conferencing, block billing, and vague descriptions. Representative, but not exhaustive, examples of such entries, each of which reflects at least one of these concerns, include the entries of June 15, June 22, July 11, July 28, August 14, August 30, September 22, October 11, November 9, and December 29, 2023; January 8 (both entries), January 26, January 31, February 1, February 2 (all entries of this date), February 5, February 6, February 12 (legal research), February 15, February 16, February 20 (tentative review by ALM), February 20 (tentative review by TPT), February 20, (tentative review by TH), February 21 (review of summary of results), February 21, March 4, March 12, March 18, March 20, April 2 (both entries), May 23, May 29, June 26, July 8, July 10, July 15 (both entries), July 22, July 23, July 29 (both entries), September 6, September 20, September 26, September 27 (both entries), September 30, October 1 (both entries), October 15, October 18, October 23 (entries from ALM, RK, and TL re tentative ruling), October 23 (mediation entry), October 25 (both entries), October 28, November 5 (service of demands), December 9, 2024 (service of expert designation); January 7, January 15 (both entries), January 16, January 17 (prep and attendance of ex parte hearing), January 21 (email responses), January 22 (TL entry), January 23 (ALM entry), January 23 (TL entry re phone calls), January 23 (TL entry re emails), January 23 (ZP entry re sending meet and confer), January 23 (ZP entry re docket review), January 27 (KX entry re service of objections), January 27 (KX entry re calendar), January 28 (KX entry re service), January 29 (ALM entry), January 30 (KX entry re looking through calendar). Again, these entries are illustrative and not exhaustive of all entries that appear throughout the entirety of the records.

The Court also concludes the case was overstaffed, despite Plaintiff's argument that "only eight" attorneys accounted for 78% of the work. Counsel's decision to staff this case with eight attorneys on a routine, though heavily litigated, lemon law case is excessive, regardless of the claim of specialization by work type in the "assembly line" style that was "pioneered" by the automotive industry.

In light of the numerous instances of excessive time expenditures, excessive intra-office conferencing, block billing, and vague descriptions, the Court exercises its discretion to reduce the claimed hours sought with a twenty-five percent reduction. (*Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102 [courts may make "across-the-board percentage cuts either in the

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number of hours claimed or in the final lodestar figure” when a voluminous fee application is made]; *Snoeck v. ExakTime Innovations, Inc.* (2023) 96 Cal.App.5th 908, 929 [affirming twenty-percent reduction based on overstaffing, excessive and vague billing, duplicative work, and degree of success].)

Finally, The Court has considered the education, training, and experience of the attorneys and paralegals as set forth in the supporting declaration of Roger Kirnos. Based on that information and on the Court's own experience with prevailing rates in the legal community, the Court finds that the following hourly rates are reasonable:

Timekeeper	Reasonable Hourly Rate
Roger Kirnos	\$525
Amy Morse	\$450
Sundee Samra	\$375
Jeffery Mukai	\$525
Timothy Lupinek	\$450
Debra Reed	\$495
Russell Higgins	\$550
Zachary Powell	\$425
Armando Lopez	\$350
Jacob Cutler	\$500
Angelica Zamudio	\$225
Thach Tran	\$375
Summer Smith	\$625
Harita Nandivada	\$250
Keishunn Johnson	\$225
Grenville Pridham	\$550
Stephanie Rosado Schaerer (non-CA-admitted)	\$145
Kasey Xicara (paralegal)	\$125
Lee Salazar (paralegal)	\$145

After allowance of seventy-five percent of the hours claimed, the Court approves attorney fees in the amount of \$98,333.50, calculated as follows:

Biller	Rate	Hours	Total
Kirnos	525	2.4	\$ 1,260.00
Morse	450	6.3	\$ 2,835.00
Samra	375	10.5	\$ 3,937.50
Mukai	525	2.3	\$ 1,207.50
Lupinek	450	35.4	\$ 15,930.00
Reed	495	6.3	\$ 3,118.50
Higgins	550	12.4	\$ 6,820.00

Powell	425	4.6	\$ 1,955.00
Lopez	350	5.5	\$ 1,925.00
Cutler	500	14.5	\$ 7,250.00
Zamudio	225	3.1	\$ 697.50
Tran	375	28.1	\$ 10,537.50
Smith	625	12.6	\$ 7,875.00
Nandivada	250	3.2	\$ 800.00
Johnson	225	4.2	\$ 945.00
Pridham	550	51.9	\$ 28,545.00
Schaerer	145	2.1	\$ 304.50
Xicara	125	11.7	\$ 1,462.50
Salazar	145	6.4	\$ 928.00
		Total	\$ 98,333.50

The Court declines to apply a multiplier in this case. Even though this case was litigated over the course of several years and settled after trial documents were prepared, it was still routine. There were no challenges to the pleadings, such as by demurrer, motion to strike, or motion for summary judgment, and the case was not tried. There was a motion to compel arbitration that Plaintiffs defeated and a few motions to compel further responses and deposition testimony, but the Court finds that such motions are routine and arise from typical disputes that might occur in any litigation.

B. Costs

Concurrently with their motion, Plaintiffs filed a memorandum of costs, seeking an award of the following costs: \$935 in filing and motion fees; \$150 in jury fees; \$8,798.92 in deposition costs; \$181.55 for service of process; \$5,449.69 for witness fees; \$4,217.15 in models, blowups, and photocopies of exhibits; \$6,300 in court reporter fees as established by statute; and \$4,294.15 in other fees, of which \$2,738.13 are for attorney services and messenger fees; \$648 is for CourtCall; \$197.83 is for transcription of the hearing on Defendant's ex parte application; \$168.19 is for travel; and \$340 is for mediation. The total sought is \$30,326.46. Items on a verified cost bill, if they appear to be proper, are "prima facie evidence that the costs, expenses and services therein were necessarily incurred." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 624; see also *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486 ["A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (internal quotation marks omitted)].)

Defendant does not object to any of the costs requested and further appears to suggest that Plaintiffs should be awarded their entire costs. (See generally *Opp.*; see also *id.* at 1:18-21 [arguing for total award of \$92,907.36, comprised of \$62,580.90 in attorney fees and \$30,326.46 in costs].)

The Court has reviewed the requested costs and finds that, given the procedural posture of the cost when it settled, the costs were reasonable and necessary to the conduct of the litigation and

were reasonable in amount. (*Warren, supra*, 30 Cal.App.5th 42-43.) Accordingly, the Court allows costs in the amount requested, \$30,326.46.

III. Disposition

Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses is granted. The Court will award attorney fees in the amount of 98,333.50 and costs in the amount of \$30,326.46, for a total award of \$128,659.96.

Counsel for Plaintiffs is to give notice of the Court's ruling.